

Opinion of the Court

That does not mean, however, that every decision or action customarily performed by a public official—such as the myriad decisions to refer a constituent to another official—counts as an “official act.” The “official action” at issue in *Birdsall* was “advis[ing] the Commissioner of Indian Affairs, contrary to the truth,” that the facts of the case warranted granting leniency to certain defendants convicted of “unlawfully selling liquor to Indians.” *Id.*, at 227–230. That “decision or action” fits neatly within our understanding of § 201(a)(3): It reflected a decision or action to advise another official *on* the pending question whether to grant leniency.

In sum, an “official act” is a decision or action on a “question, matter, cause, suit, proceeding or controversy.” The “question, matter, cause, suit, proceeding or controversy” must involve a formal exercise of governmental power that is similar in nature to a lawsuit before a court, a determination before an agency, or a hearing before a committee. It must also be something specific and focused that is “pending” or “may by law be brought” before a public official. To qualify as an “official act,” the public official must make a decision or take an action on that “question, matter, cause, suit, proceeding or controversy,” or agree to do so. That decision or action may include using his official position to exert pressure on another official to perform an “official act,” or to advise another official, knowing or intending that such advice will form the basis for an “official act” by another official. Setting up a meeting, talking to another official, or organizing an event (or agreeing to do so)—without more—does not fit that definition of “official act.”

B

In addition to being inconsistent with both text and precedent, the Government’s expansive interpretation of “official act” would raise significant constitutional concerns. Section 201 prohibits *quid pro quo* corruption—the exchange of a thing of value for an “official act.” In the Government’s